

Here, the court cannot find given the procedural posture of this case that permitting amendment would be in the furtherance of justice and would not prejudice the opposing party. These issues were previously fully litigated in the demurrer to the third amended complaint and the court clearly found that plaintiff fell short of his burden to show how the defects in the pleading could be cured. While plaintiff's supplemental declaration submitted with his reply brief includes that he received defendants' verified discovery responses on October 16, 2025, plaintiff does not explain why the newly discovered information was not part of his opposition to the demurrer to the third amended complaint (which he filed on November 17, 2025), nor does he explain why he did not request oral argument on the tentative ruling sustaining the demurrer without leave.

In substance, plaintiff's motion amounts to a motion for reconsideration pursuant to Code of Civil Procedure section 1008. A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, plaintiff falls short of his burden to show new or different facts, circumstances, or law that could not have reasonably been discovered and presented in his opposition to the demurrer and at oral argument at the hearing on the demurrer.

Based on the foregoing, the motion for leave to amend is denied.

Defendants may file an application for dismissal pursuant to Code of Civil Procedure section 581(f)(1).

6. S-CV-0054052 Morrill, Rowenna v. City of Rocklin

Motion to be relieved as counsel

Counsel for Plaintiff Rowenna Morrill moves to be relieved as counsel. No response to this motion has been filed.

There is no evidence in the court's file of service of the motion filed August 26, 2026 on the plaintiff. Based on the failure to demonstrate proper and timely service on the plaintiff, the motion is denied without prejudice.